

NO. 141-370402-25

**WEINSTEIN MANAGEMENT CO.,
INC. AND WMCI DALLAS X, LLC,
Plaintiffs and Counter-Defendants,**

v.

**KATHRYN COPELAND,
Defendant and Counter-Plaintiff.**

§
§
§
§
§
§
§
§

IN THE DISTRICT COURT OF

TARRANT COUNTY, TEXAS

141ST JUDICIAL DISTRICT

**ORDER GRANTING DEFENDANT’S AMENDED MOTION FOR
STATUTORILY REQUIRED COMPLIANCE**

On this day, the Court considered Defendant Kathryn Copeland’s *Amended Motion for Statutorily Required Compliance with Federal and State Disability Law*. After reviewing the motion, the filings, and the applicable law, the Court finds:

1. Defendant is a person with disabilities protected under the Fair Housing Act, the Americans with Disabilities Act, and the Texas Fair Housing Act.
2. Plaintiffs received multiple written disability-related accommodation requests (including on March 5, June 27, June 30, August 14, and September 11, 2025), which placed them on explicit notice of Defendant’s disabilities and the need for accommodation.
3. Plaintiffs’ licensed mold assessor declared Unit 2145 “UNFIT FOR HUMAN OCCUPANCY” on June 18, 2025, and Plaintiffs have not produced a Certificate of Mold Remediation or evidence of completed licensed remediation.
4. Plaintiffs provided 93 days of hotel lodging as an accommodation, confirming their knowledge of their statutory duty, and terminated that accommodation while remediation remained incomplete.

5. Under 42 U.S.C. § 3604(f)(3)(B) and Tex. Prop. Code § 301.152, once disability and need are established, the duty to provide reasonable accommodation is **mandatory and nondiscretionary**.
 6. Under 42 U.S.C. § 3617, housing providers may not retaliate against any person for exercising rights protected under the Fair Housing Act, and courts must enforce this prohibition when raised.
 7. The statutory duties triggered in this case are ministerial rather than discretionary; the Court must enforce the mandatory requirements of the FHA, ADA, and Texas Fair Housing Act.
 8. The record includes repeated disability-related accommodation requests (including on March 5, June 27, June 30, August 14, and September 11, 2025), a licensed professional condemnation of the unit on June 18, 2025, 93 days of temporary housing provided by Plaintiffs, and the termination of that accommodation while remediation remained incomplete.
-

IT IS THEREFORE ORDERED that:

1. Reinstatement of Temporary Housing

Plaintiffs **shall reinstate** Defendant's temporary housing at a suitable hotel or comparable accommodation and shall maintain such housing **until licensed remediation is completed** and written clearance or a Certificate of Mold Remediation is issued.

Reinstated housing must provide basic accessibility features necessary for Defendant's disabilities, including kitchen access, laundry access, and stable accommodations consistent with ADA and FHA requirements.

2. Licensed Contents Assessment

Plaintiffs **shall coordinate and fund** a TDLR-licensed contents assessor to evaluate Defendant's belongings for contamination, salvageability, and safety, and shall make the property accessible for that purpose.

3. Suspension of Rent Demands and Prohibited Retaliation

Plaintiffs **shall suspend all rent demands, late fees, and collection efforts** relating to periods in which the unit was uninhabitable or declared unfit for occupancy.

Plaintiffs **shall not engage in any retaliatory action** prohibited under the Fair Housing Act, ADA, or Texas Fair Housing Act.

4. Immediate Effect

This Order takes effect **immediately**.

SIGNED on _____, 2025, at _____.m.

JUDGE PRESIDING

141st Judicial District Court, Tarrant County, Texas